WEST LAFAYETTE
HOME of PURDUE

CITY COUNCIL
Thursday, May 12, 2022 at 4:30 PM

Meeting Agenda

Special Meeting

Common Council is held at Margerum City Hall, 222 North Chauncey Avenue, West Lafayette, IN 47906. Comments can be submitted to the Clerk's office by emailing clerk@ westlafayette.in.gov.

Electronic Options:

- Live stream without participation via our website.
- Council (May 12, 2022, at 4:30 p.m.) via Microsoft Teams , or phone: +1-574-367-5293, Code: 869 451 584

---

1. CALL TO ORDER: President Bunder (Pledge of Allegiance)

2. ROLL CALL: Blanco, Brown, Bunder, DeBoer, Kang, Leverenz, Parker, Sanders, Thomas

3. NEW BUSINESS:

   a. Ordinance No. 14-22 Historic Preservation Commission: Historic Designation – 314 Russell Street (Submitted by Historic Preservation Commission and Department of Development) [No. of Readings 1 of 2] *Note: We anticipate that the Council will vote to suspend the rules and take a second vote on this item at this meeting.*
   Documents:
   Ordinance No. 14-22
   Review Notes

4. COMMUNICATIONS

5. PUBLIC COMMENTS

   We welcome public comment and encourage active participation at this meeting. However, in order to proceed efficiently, public comment will be limited to two areas of this meeting.

   First, there will be an opportunity for public comment on ordinances or resolutions currently before the Council. These comments should be limited to three (3) minutes in length and be germane and relevant to the Ordinance or Resolution. All participants will be required to

maintain a high level of civility, respect, and courtesy for everyone present. Any participant, who after being advised, persists in a discourteous or hostile manner which may disrupt the meeting will be asked to leave.

At the end of the meeting, time will be reserved for public comment on any issue or concern that you may have. We welcome public comments and encourage active participation at this meeting. In our effort to proceed efficiently, we would ask that you sign-in on the designated sheet on the handout table, and that you limit your comments to (3) minutes in length. If you need additional time, please consider sending your questions, comments, or concerns to the Clerk's email address: clerk@wl.in.gov. Your contribution to this meeting supports the efforts of the Council in addressing issues that are important to the citizenry of West Lafayette.

6. ADJOURNMENT

Next Regular Council Meeting: **Tuesday**, June 7, 2022

Note: Pre-Council meets on an as-needed basis and will be announced on public meeting notices from the Clerk's Office.

Submitted by the Historic Preservation Commission
and the Department of Development

ORDINANCE NO. 14-22

HISTORIC PRESERVATION COMMISSION: HISTORIC DESIGNATION – 314 RUSSELL STREET

WHEREAS, the Common Council of the City of West Lafayette passed Ordinance 09-11 (Third Amended) which established an Historic Preservation Commission which had an initial purpose to solicit public input and formulate a draft of an Historic Preservation Ordinance for recommendation and submission to the Council; and

WHEREAS, the initial purpose of the Historic Preservation Commission has been fulfilled and the following is recommended by the Commission to the Council for its consideration and action

WHEREAS, the boundaries, powers, duties guidelines and procedures of the Historic Preservation Commission were granted by Ordinance No. 19-13

WHEREAS, the Historic Preservation Commission holds certain powers to designate additional Historic Districts and Indiana State Code 36-7-11-8.5 allows for the Historic Preservation Commission to submit a map to City Council to designate a building as historic to be placed under protection

WHEREAS, City Council, in October of 2021, rejected an earlier demolition plan submitted in relation to property located at 314 Russell Street, West Lafayette, Indiana (the “Property”)

WHEREAS, the structure at the Property holds significant architectural and historical value to the West Lafayette community and has been listed by the United States Department of the Interior National Park Service on the National Register of Historic Places

WHEREAS, the property fulfills the requirement of being historic by existing for at least 50 years and has architectural and historic significance, as recognized by the Historic Preservation Commission

And, WHEREAS, in accordance with Ind. State Code 36-7-11-8.5 the Commission hereby declares the Property to be under interim protection pending a final determination by the Council

NOW THEREFORE, BE IT ORDAINED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE THAT:

There is added to the West Lafayette City Code Chapter 18, Article II one additional property as referenced in the attached Exhibit: 2022 Historic District Map.

Per section 18-2 (d) this map will be recorded with the Tippecanoe County Recorder.

INTRODUCED ON FIRST READING ON THE _____ DAY OF _____, 2022.

MOTION TO ADOPT MADE BY COUNCILOR _____, AND SECONDED BY COUNCILOR _____.

A MOTION TO CONSIDER ON FIRST READING WAS SUSTAINED BY A VOTE OF ___ IN FAVOR AND ___ OPPOSED, PURSUANT TO IC-36-4-6-13.

DULY ORDAINED, PASSED, AND ADOPTED BY THE COMMON COUNCIL OF THE CITY OF WEST LAFAYETTE, INDIANA, ON THE _____ DAY OF _____, 2022, HAVING BEEN PASSED BY A VOTE OF ____ IN FAVOR AND ____ OPPOSED, THE ROLL CALL VOTE BEING:

	AYE	NAY	ABSENT	ABSTAIN
Blanco				
Brown				
Bunder				
DeBoer				
Kang				
Leverenz				
Parker				
Sanders				
Thomas				

_____
Peter Bunder, Presiding Officer

Attest:

_____
Sana G. Booker, Clerk

PRESENTED BY ME TO THE MAYOR OF THE CITY OF WEST LAFAYETTE, INDIANA ON THE _____ DAY OF _____, 2022.

_____
Sana G. Booker, Clerk

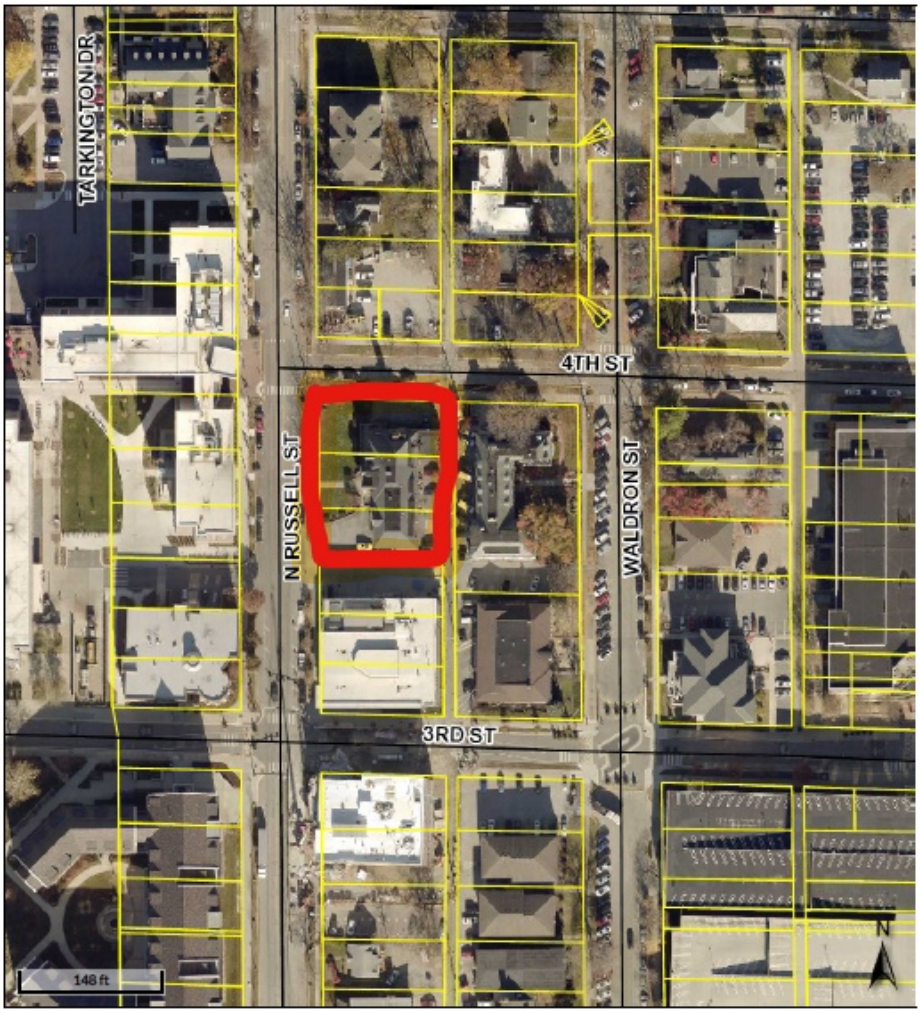
THIS ORDINANCE APPROVED AND SIGNED BY ME ON THE _____ DAY OF _____, 2022.

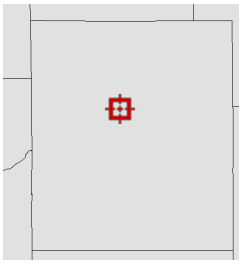
_____
John R. Dennis, Mayor

Attest:

_____
Sana G. Booker, Clerk

2022 Historic District Map (Ordinance No. 14-22)





Parcel ID	79-07-19-127-023.000-026	**Alternate ID**	164-01800-0300	**Owner Address**	PCM PROPERTIES LLC
Sec/Twp/Rng	--	**Class**	419 - Other housing		PO BOX 896
Property Address	314 N RUSSELL ST WEST LAFAYETTE	**Acreage**	n/a		WESTFIELD, IN 46074
District	WEST LAFAYETTE CITY-WLSC-B				
Brief Tax Description	UNIV PK ADDN LOTS 29 30 & 31 (Note: Not to be used on legal documents)				

Date created: 5/3/2022
Last Data Uploaded: 5/3/2022 5:38:49 AM

Developed by Schneider GEOSPATIAL

Review Notes

MKSK

Staff Review Notes – 314 Russell Street
05/9/2022
Prepared for the City of West Lafayette Historic Preservation Commission

314 Russell Street is listed as outstanding on the National Register of Historic Places Report (see below reference) and is listed as outstanding on the Indiana DNR Interim Report (see below reference).

National Register of Historic Places – Single Property Listings – INDIANA 754

Resource Name: Alpha Tau Omega Fraternity House

Alternate Name: Maltese Manor; Indiana Gamma Omicron Chapter

Reference Number: 02000197

Address: 314 Russell Street

City or Town: West Lafayette

County: Tippecanoe

List Date: 03/20/2002

Period of Significance: 1920

Significant Dates: 1920

Areas of Significance: Architecture

Architectural Classification(s): Tudor Revival

Architect and/or Builder: Daggett, Robert Frost; Stackhouse, Allan

140 O **Alpha Tau Omega House,** 314 Russell Street; Collegiate Gothic, c.1920; Architecture, Education (333)



140

Petition Summary

This request is for 314 Russell Street to demolish the former ATO Fraternity House, AKA Maltese Manor and Indiana Gamma Omicron Chapter house, by the owner of PCM Properties. As part of a 2021 filing to the West Lafayette City Council, a 101-bed mixed-use complex with ground floor commercial and upper floor rental apartments was proposed and was rejected. The petitioner did not submit new development plans for the site along with the demolition petition. This project triggers West Lafayette Ordinance 19-13 and Indiana State Statute 36-7-11-8.5. The West Lafayette Ordinance references the statute outlining the below process per legal counsel. This process requires a recommendation Historic District Application Review to enable full protection and establishment of a local historic district and map if desired by the West Lafayette Historic Preservation Commission. This process also triggers components of the ordinance under sections 24.183, 24. 184, 24.185, and 24.186 of the ordinances regarding the classification of historic district criteria. This staff report follows this process in establishing the case for Full Protection of 314 Russell Street.

General procedure for Interim Protection (I.C. 36-7-11-8.5) – the **building is currently in Interim Protection status.**

Ind. Code 36-7-11-8.5(a) addresses interim protections. It provides that "[w]hen submitting a map … the commission may declare" a building classified and designated as historical on the map to be under interim protection. To do this, the Commission must provide written notice that: (1) cites the authority of the committee to put the building under interim protection; (2) explains the effect of putting the building under interim protection; and (3) indicates that the interim protection is temporary. Ind. Code 36-7-11-8.5(b). This notice must go out "not more than" two days after the building is declared under interim protection and should be sent via personal delivery or first-class mail to the owner of the building. After that, the map is submitted to the council (the city's legislative body) and either approved or rejected. Ind. Code 36-7-11-8.5(c). While the building is under interim protection, it may not be demolished or moved, and the exterior presence of the building may not be "conspicuously changed."

Submitting a map for Full Protection – **commission is seeking Full Protection Status.**

Ind. Code 36-7-11-6(a) notes that a map describes the boundaries of the historic district or historic districts and may be limited to the boundaries of a property containing a single building (i.e. 314 Russell Street). The map is derived from the commission's "survey to identify historic buildings, structures, and sites located within the" City.

This map, once created, "must be submitted to, and approved in an ordinance by, the legislative body of the unit before the historic district is established and the building classifications take effect." So, in other words, there will need to:

1. Submit a map to the council via ordinance identifying 314 Russell Street as a historic district.
2. Declare 314 Russell Street as being under "interim protection."
3. Send notice to the property owner.
4. Ultimately, the council either approves or rejects the map.

Historical Summary

This property is an outstanding example of Tudor Revival architecture (also listed elsewhere as Collegiate Gothic) in the National Register of Historic Places Report and is listed as outstanding on the Indiana DNR Interim Report. The National Register of Historic Places listed the Alpha Tau Omega house in 2002, referring to it as “Maltese Manor” and saying it was a landmark and “a prime example of the craftsmanship and grandeur of the late-1800/early 1900 building trends on university campuses.” The National Register rated the ATO house as “outstanding, despite its replacement windows and addition.” Furthermore, this is a remaining example of two such buildings in the immediate proximity of the campus.

In addition, this property has links back to historical figures and prominent architects:

- Sen Birch Bayh
- Astronaut David Wolf
- NFL QB Len Dawson
- Architect Robert Frost Daggett
- Architect Allan Stackhouse

It should be of interest to the Commission that Architect Robert Frost Daggett is representative of a prominent Indiana Architecture Firm specializing in University buildings. Three generations of the Daggett family headed the Daggett architectural firm of Indianapolis, and its work spanned over a century of distinguished work in Indianapolis and the surrounding area. Robert Frost Daggett (1875-1955), the second generation, was born in Indianapolis. He graduated from Indianapolis High School in 1893, from the University of Pennsylvania School of Architecture in 1896, and the Ecole des Beaux Arts in Paris in 1901. He then joined his father's firm until his work was interrupted by the first World War. He was assigned first to the 472nd Aero Squadron, he was then transferred to the Engineers, and was responsible for building many field and base hospitals in France. Returning home, he became the architect for Indiana, Purdue, and DePauw Universities and designed Jordan Hall at Butler University. He designed several buildings for the Indiana University School of Medicine, and Long and Riley Hospitals. His work also included several buildings for Eli Lilly and Co., the Consolidated and Chamber of Commerce Buildings, the Indianapolis Athletic Club, and the Tabernacle Presbyterian Church.

Historic Preservation Review

Applicable definitions:

- Demolition: the complete or substantial removal of any building or structure located in a local historic district.
- Interim Protection: may be exercised to protect a historic building, structure, object, or site from alteration or demolition. A historic building, structure, object, or site under Interim Protection is subject to all regulations pertaining to buildings, structures, objects, or sites located within established Historic Districts.
- Local Historic District: a single building, structure, object, or site or a concentration of buildings, structures, objects, spaces, or sites, the boundaries of which are described or delineated on a map approved in an ordinance adopted under this title.

Criteria for establishing a local preservation ordinance for the protection of a singular property

Buildings, structures, and sites classified as historic must possess identified historic or architectural merit of a degree warranting their preservation. They may be further classified as Outstanding, Notable, or Contributing (as defined in Section 24.181 of this ordinance). In lieu of these further classifications, the Commission may devise its own system of further classification for historic buildings, structures, sites, and districts.

- Historic District criteria. A historic district shall include a building, groups of buildings, structure(s), site(s), monument(s), streetscape(s), or neighborhood(s) that meet at least one of the following criteria:
    - Has significant character, interest, or value as part of the development, heritage, or cultural characteristics of the city, state, or nation; or is associated with a person who played a significant role in local, state, or national history.
    - Is the site of a historic event; or exemplifies the cultural, political, economic, social, or historic heritage of the community.
- Architecturally worthy.

    - Embodies distinguishing characteristics of an architectural or engineering type.
    - Is the work of a designer whose individual work has significantly influenced the development of the community.
    - It is the work of a designer of such prominence that such work gains its value from the designee's reputation.
    - Contains elements of design, detail, materials, or craftsmanship which represent a significant innovation.
    - Contains any architectural style, detail, or other elements in danger of being lost.
    - Owing to its unique location or physical characteristics represents an established and familiar visual feature of the neighborhood or the city.

- Exemplifies the built environment in an era of history characterized by a distinctive architectural style.

- Historic District. The establishment of a historic district shall occur in two (2) phases.
  - During the first phase, which continues for a period of three (3) years from the date any map of the Local Historic District is adopted, a certificate of appropriateness is required for only the following activities: the demolition of any building; the moving of any building; and any new construction of a principal building or accessory building or structure subject to view from a public way.
    - At the expiration of the initial three (3) year period, the first phase of the designation of the district continues, and the second phase does not become effective if a majority of the property owners in the district object to the Commission, in writing, to the requirement that Certificates of Appropriateness be issued for the following activities:
      - A conspicuous change in the exterior appearance of historic buildings subject to the view from a public way by additions, construction, alteration, or maintenance involving exterior changes;
      - A change in walls and fences or construction of walls and fences along public ways;
      - A conspicuous change in the exterior appearance of non-historic buildings is subject to view from a public way by additions, reconstruction, alteration, or maintenance involving exterior change.
  - The objections of a majority of the property owners must be received by the Commission not earlier than one hundred eighty (180) days or later than sixty (60) days before the third anniversary of the adoption of the said map.
  - If the requisite objections are not received in a timely fashion, the second phase shall become effective as described above.

Secretary of Interior Standards for Preservation and Rehabilitation – applicable guidelines:

- The Secretary of Interior Standards DOES NOT recommend the removal or radically changing buildings and their features or site features, which are important in defining the overall historic character of the property so that, as a result, the character is diminished. Furthermore, the Secretary of Interior Standards DOES NOT recommend failing to undertake adequate measures to assure the protection of building or site features.

West Lafayette Historic Preservation Commission Resource Guide – applicable guidelines

- Demolition may be considered under the following circumstances:
  - The building is deemed beyond all feasible economic repairs.
  - The building has deteriorated to such a poor state that the building is considered an immediate threat to health and safety.

- The building is non-historic, of Non-contributing status, and has no historical or architectural significance in the opinion of the Historic Preservation Commission.
- The building owners would suffer extreme hardship to repair the building or be permanently deprived of all beneficial uses of or return from the property.
- Removal or demolition of existing historic buildings, or portions of historic buildings to create a plaza, arcade or open space is not appropriate.

Full Protection/Historic District Application Review

Staff has determined that 314 Russell Street is listed as outstanding on the National Register of Historic Places Report and is listed as outstanding on the Indiana DNR Interim Report. In addition, analysis has determined that this structure possesses identified historic or architectural merit of a degree warranting presentation. This analysis is explained in the above text the above.

Historical Summary. In addition, 314 Russell is meeting the required criteria for preservation in the ordinance, including:

- Has significant character, interest, or value as part of the development, heritage, or cultural characteristics of the city, state, or nation; or is associated with a person who played a significant role in local, state, or national history
- Is the site of a historical event; or exemplifies the cultural, political, economic, social, or historical heritage of the community
- Architecturally worthy
- Contains any architectural style, detail, or another element in danger of being lost.
- Owning its unique location or physical characteristics represents an established and familiar visual feature of the neighborhood or the city
- Exemplifies the built environment in an era of history characterized by a distinctive architectural style.
- Is under Interim Protection status

Staff recommendation:

- **Staff recommends moving forward with Full Protection and favorable Historic District Application of 314 Russell Street if desired by the West Lafayette Historic Preservation Commission.**

Staff recommendations text:

- As explained in the Historical Summary, Building significance exemplifies the highest contribution of historical character to the community and what the West Lafayette Historic Preservation Commission endeavors to protect.
- Furthermore, the petitioner has not adequately addressed why its building cannot adhere to the following guidelines under Interim Protection :
    - Secretary of Interior Standards for Preservation and Rehabilitation – applicable guidelines:

- The Secretary of Interior Standards DOES NOT recommend the removal or radically changing buildings and their features or site features, which are important in defining the overall historic character of the property so that, as a result, the character is diminished. Furthermore, the Secretary of Interior Standards DOES NOT recommend failing to undertake adequate measures to assure the protection of building or site features.

- West Lafayette Historic Preservation Commission Resource Guide – applicable guidelines - Demolition may be considered under the following circumstances:
  - The building is deemed beyond all feasible economic repairs.
  - The building has deteriorated to such a poor state that the building is considered an immediate threat to health and safety.
  - The building is non-historic, of Non-contributing status, and has no historical or architectural significance in the opinion of the Historic Preservation Commission.
  - The building owners would suffer extreme hardship to repair the building or be permanently deprived of all beneficial uses of or return from the property.
  - Removal or demolition of existing historic buildings or portions of historic buildings to create a plaza, arcade, or open space is not appropriate.